ZURIAUTO

Lessor: Rigitrade AG

General Terms and Conditions (GTC)

As of 1 October 2026 / AK

1 Scope and Incorporation into the Contract

1.1 These General Terms and Conditions ("GTC") apply to all vehicle rental agreements of Rigitrade AG (the "Lessor") with natural persons and legal entities (the "Renter").

1.2 The rental relationship comprises the individual vehicle rental agreement, these GTC and any expressly agreed additional terms and handover or return reports. In the event of conflict, the individually agreed provisions take precedence insofar as they expressly provide otherwise. Mandatory statutory provisions remain reserved.

1.3 The GTC are made available to the Renter before or upon conclusion of the contract. They become part of the contract if the Renter validly agrees to them when the contract is concluded. For online bookings, it must be possible to give this consent before the booking is completed, and the consent must be documented in a verifiable manner.

1.4 Special terms for tourist and private rentals or for professional passenger transport apply in addition, insofar as they have been expressly incorporated into the rental agreement.

1.5 The Renter must comply with the rental agreement, these GTC and the applicable statutory provisions throughout the entire rental period.

2 Booking, Conclusion of the Contract and Rental Period

2.1 The individual rental agreement specifies in particular the rental vehicle, the start and end of the rental, the place of handover and return, the rental price, the payment terms, any deposit, the mileage arrangement and the agreed purpose of use.

2.2 A booking request does not yet constitute a binding commitment by the Lessor unless the booking has been expressly confirmed or the rental agreement has otherwise been validly concluded.

2.3 The rental period begins and ends at the times agreed in the rental agreement. An extension is binding only with the Lessor's express consent. A unilateral extension by the Renter is excluded.

2.4 Cancellations, changes to bookings, early returns and any refunds are governed by the booking terms communicated and agreed before the booking was completed and by mandatory statutory provisions.

2.5 Prices, additional services, mileage limits, fees, deposits and deductibles are shown transparently before the contract is concluded or before a binding booking is made, or are set out in the individual rental agreement. Additional services that have not been agreed are not owed solely on the basis of these GTC.

3 Identity, Driving Licence and Authorised Drivers

3.1 Before the vehicle is handed over, the Renter must prove their identity and present a driving licence valid in Switzerland for the vehicle concerned. The Lessor may require suitable identity documents for this purpose, in particular a passport or an official identity card.

3.2 For foreign driving licences, the Renter must meet the Swiss requirements for their recognition. An international driving permit or a translation must be presented where required under the applicable regulations. An international driving permit does not replace the national driving licence.

3.3 The Renter must meet all minimum age, driving experience and other eligibility requirements set out in the individual rental agreement or in the terms communicated before booking. Any surcharges or restrictions for certain groups of drivers are disclosed before the contract is concluded.

3.4 The vehicle may be driven only by the Renter named in the rental agreement and by expressly authorised additional drivers. Additional drivers must have been identified, and their entitlement to drive verified, before the vehicle is handed over. The Renter's consent alone does not entitle any other person to drive the vehicle.

3.5 The Renter may not drive the vehicle or leave it to any person who is not entitled to drive, not fit to drive or not

expressly authorised.

3.6 The Renter shall inform the Lessor without delay of the withdrawal, restriction or loss of any entitlement to drive required for the use of the vehicle.

3.7 The Lessor may refuse to hand over the vehicle if required documents are missing, invalid or subject to well-founded doubt, if eligibility requirements are not met, or if specific circumstances indicate that the vehicle would not be used safely or in accordance with the contract. Statutory claims remain reserved.

4 Permitted Use and Prohibited Uses

4.1 The vehicle may be used only for the purpose agreed in the individual rental agreement. Private holiday and leisure trips are permitted if the rental agreement provides for private use.

4.2 Professional passenger transport, in particular via intermediary platforms, is permitted only if this use is expressly agreed in the rental agreement and all statutory, regulatory and insurance requirements are met.

4.3 The following are prohibited in particular:

a) leaving the vehicle to drivers who are not authorised, passing it on without authorisation or subletting it, and transferring the rental agreement without the Lessor's consent;
b) use for criminal acts or other unlawful purposes;
c) driving under the influence of alcohol, drugs or any other substance that impairs fitness to drive;
d) races, motorsport events, driver training, test drives or the commercial transport of goods, unless such use has been expressly agreed;
e) overloading, exceeding the permitted seating or weight limits, and any use contrary to the manufacturer's specifications;
f) smoking and vaping in the vehicle, including the use of e-cigarettes;
g) tampering with, removing, damaging or deactivating without authorisation any GPS, tracking or other security devices;
h) using the vehicle despite a recognisable safety-relevant defect or a warning message for which continuing the journey is not safe or not justifiable;
i) use outside the agreed area, or cross-border use contrary to clause 5.

4.4 The Renter shall use the vehicle with care, safely and in accordance with the manufacturer's specifications. The Renter may not make any technical modifications on their own initiative.

4.5 In the event of a material breach of contract, the Lessor may terminate the rental agreement in accordance with the applicable law and demand the return of the vehicle. Where appropriate and necessary, the Lessor may set a deadline for the breach to be remedied. In serious or urgent circumstances, immediate measures permitted by law remain reserved.

5 Trips Abroad and Geographical Restrictions

5.1 Trips abroad are permitted only to countries that the Lessor has expressly approved for the specific vehicle and rental. The approved countries must be recorded in the rental agreement, in the booking confirmation or in an expressly incorporated list of countries.

5.2 Before setting off, the Renter must check whether the required vehicle documents, insurance cover, entry requirements and, where applicable, breakdown assistance services are valid for the countries planned. The Renter must comply with all traffic and other statutory regulations applicable there.

5.3 Entering countries that have not been approved, and any use that jeopardises or breaches the insurance cover, is prohibited.

5.4 The Renter bears the tolls, vignettes, parking fees and other use-related road charges attributable to the Renter.

6 Rental Price, Mileage, Fuel and Charging

6.1 The rental price, any mileage limit, the price of additional kilometres, the arrangement on fuel or charge level and any additional services are set out in the individual rental agreement or in the pricing terms expressly agreed before booking.

6.2 Unless otherwise agreed, the Renter bears the fuel and charging costs incurred during the rental period. The vehicle

must be returned with the agreed fuel or charge level.

6.3 Missing fuel or charge, additional kilometres and agreed additional services may be charged only at the prices previously communicated, agreed and permitted by law.

6.4 The Renter must use the fuel prescribed for the vehicle and follow the manufacturer's operating and charging instructions. Damage resulting from the wrong fuel, improper operation or use contrary to the contract is borne by the Renter insofar as the Renter is liable for it under the law and the contract.

6.5 Parking fees, tolls, vignettes, traffic charges and other use-related costs are borne by the Renter insofar as they arise during the Renter's rental period and are legally attributable to the Renter.

7 Upkeep, Maintenance, Damage and Cleaning

7.1 As a rule, the Lessor bears the costs of regular scheduled maintenance, the usual seasonal tyre change, the motor vehicle tax and the motor vehicle liability insurance agreed by it.

7.2 Ordinary mechanical repairs and technical defects not culpably caused by the Renter are, as a rule, borne by the Lessor, subject to the agreed contractual terms and mandatory statutory rights.

7.3 Before setting off and during the rental period, the Renter must, within reason, pay attention to obvious defects, warning messages, tyre damage and other safety-relevant irregularities.

7.4 In the event of a safety-relevant warning message or a significant defect, the Renter must interrupt the journey at a safe place and inform the Lessor without delay. Continuing the journey is permitted only if it is safe and justifiable in the circumstances or has been authorised accordingly.

7.5 As a rule, the Renter may arrange repairs only with the Lessor's prior consent. This does not apply to necessary immediate measures to avert danger or to prevent significant further damage if it is not possible or not reasonable to contact the Lessor in time. Receipts must be kept. Clause 9 also applies to breakdown and towing services.

7.6 Tyre and rim damage:

The Renter must drive the vehicle with due care and, in particular, avoid damage to tyres and rims. This includes, in particular, not approaching or driving over pavement edges and kerbs improperly and passing obstacles with due caution.

If the Renter culpably causes damage to a tyre or rim, in particular a puncture, cut, tear, sidewall damage or other damage, the Renter is liable for the resulting costs to the extent permitted by law.

For tyre damage culpably caused by the Renter, the actual costs of the necessary tyre repair or tyre replacement, including fitting, are charged, but at least CHF 100.00 per damaged tyre. If a repair is not professionally possible or not economically reasonable, the actual costs of the necessary replacement of the damaged tyre or rim, including the necessary fitting, are charged. The replacement of both tyres on the same axle may also be charged if this is required by statutory provisions, the actual condition of the tyres or binding manufacturer specifications.

In addition, to the extent permitted by law, the Renter is liable for any actual and demonstrable loss of rental income caused by the damage and for other directly caused and reasonable costs, insofar as these are not already covered by the amounts above.

Liability requires that the damage can be legally attributed to the Renter. Damage for which the Renter is not responsible, in particular material defects or unavoidable external influences, is excluded.

7.7 The vehicle must be returned in proper condition. Normal wear and tear in accordance with the contract does not count as damage.

7.8 In the event of excessive soiling or soiling contrary to the contract, in particular from strong odours, animal hair, traces of smoke, spilled liquids or other soiling that requires professional specialist cleaning, the Lessor may charge the reasonable cleaning costs actually incurred. A minimum flat rate of CHF 150.00 applies only if it was agreed before the contract was concluded and is reasonable and legally permissible in the specific case.

7.9 The loss or theft of, or damage to, vehicle keys, the vehicle registration document, licence plates, charging cards or other accessories provided must be reported without delay. To the extent permitted by law, the Renter is liable for the necessary and reasonable costs of replacement and restoration insofar as the Renter is responsible for them.

8 Insurance, Deductible and Liability

8.1 The insurance cover expressly specified in the rental agreement and the relevant insurance terms determine the scope of the cover. Before the contract is concluded, the Lessor informs the Renter of the agreed insurance cover, any deductible and material exclusions.

8.2 Cover for professional passenger transport or other special types of use exists only if it has actually been agreed and insured for the specific purpose. The Renter may not use the vehicle contrary to the agreed insurance terms.

8.3 Under the statutory provisions and the validly agreed rental agreement, the Renter is liable in particular for:

a) damage to the rental vehicle that the Renter has culpably caused or for which the Renter is answerable by law;
b) an agreed insurance deductible, insofar as it is owed under the rental agreement and there is a corresponding loss event for which the Renter is responsible;
c) damage and costs not covered, insofar as they are legally attributable to the Renter;
d) traffic offences, fines and other sanctions, insofar as they were caused by the Renter's conduct and can legally be imposed on the Renter;
e) legitimate claims of third parties, insofar as the Renter is liable for them by law.

8.4 Liability for a total loss, loss of use, loss of rental income or other consequential damage exists only insofar as the respective requirements under the law and the contract are met, compensable damage has been proven and no double compensation results.

8.5 The Lessor's liability is governed by the applicable law. Limitations of liability apply only to the extent permitted by law. In particular, mandatory liability provisions and the statutory rules on intentional or grossly negligent conduct remain reserved.

8.6 The Renter must take reasonable measures to prevent and limit damage, must not jeopardise the insurance cover and must cooperate in the handling of claims. The reporting and cooperation obligations under clause 9 remain reserved.

9 Accident, Breakdown, Reachability and Claims Management

9.1 General reachability of the Renter:

During the rental period, the Renter must be reachable on the mobile phone number they provided and must ensure that their mobile phone is sufficiently charged and able to receive incoming calls and messages.

In the event of a breakdown, an accident, a technical defect or any other problem with the vehicle, the Renter must, insofar as safe and reasonable, set their mobile phone so that calls and messages from the Lessor are reliably noticed. In particular, silent mode and functions such as "Do not disturb" must be temporarily deactivated insofar as they impair reachability.

The Renter must respond to the Lessor's attempts to call them back without delay, at the latest within 10 minutes of becoming aware of the call attempt. As a rule, this also applies between 00:00 and 07:00, unless there are legitimate reasons preventing it. The safety of the Renter and of third parties and mandatory statutory provisions always take precedence.

9.2 Procedure in the event of breakdowns and technical defects:

In the event of a breakdown, a warning message or a technical defect, the Renter must stop the vehicle at a safe place without delay, take the necessary safety measures and inform the Lessor by telephone. The Lessor's instructions must be followed insofar as they are lawful, reasonable and safe.

If the Lessor cannot be reached by telephone, the Renter must, as a rule, wait at least 15 minutes for a call back, insofar as this is safe and reasonable in the specific situation. During this time, the Renter must also send the Lessor a WhatsApp message asking to be called back, with a short description of the problem and the location of the vehicle.

While waiting, the Renter must remain reachable for a call back and avoid unnecessary phone calls. Insofar as technically possible and reasonable, the Renter must temporarily deactivate an active voicemail and any call forwarding that prevents immediate reachability. The settings required for this depend on the options and instructions of the respective mobile network provider.

The obligation to wait does not apply if immediate measures are necessary to avert danger, to secure the scene of an accident or to prevent significant consequential damage.

9.3 Special procedure for accidents between 00:00 and 07:00:

In the event of a road accident between 00:00 and 07:00, the Renter must, in addition to the general reporting and cooperation obligations, follow the steps below insofar as this is safe and possible in the specific situation.

9.3.1 Secure the accident site and draw up an accident report: The Renter must stop the vehicle at a safe place, secure the accident site and initiate any necessary first-aid or emergency measures. If anyone is injured or there is immediate danger, the competent emergency services must be notified without delay. Where possible and safe, the Renter must draw up an accident report together with the other drivers involved. It must record in particular the personal and contact details of those involved, the licence plates, the insurance details and the information needed to document how the accident happened.

9.3.2 Notify the police: For accidents between 00:00 and 07:00, the Renter must, as a rule, contact the police on 117, report the accident and ask how to proceed. Statutory reporting obligations and police instructions must be complied with. If anyone is injured or there is acute danger, the competent emergency services must be alerted without delay.

9.3.3 Photos and preservation of evidence: Immediately after the accident, if this can be done safely, the Renter must take meaningful photos for documentation. They should show in particular: the licence plates of all vehicles involved; the position of the vehicles in relation to each other and their location at the accident site; all visible damage to the rental vehicle and to the vehicles involved; the accident site, relevant traffic signs and other circumstances important for reconstructing how the accident happened. The photos and the accident report must be sent to the Lessor as quickly as possible, preferably by WhatsApp.

9.3.4 Contact the Lessor and breakdown assistance: After securing the accident site and recording the accident as required, the Renter must contact the Lessor again. If the Lessor cannot be reached or breakdown assistance is needed, the Renter must contact the following breakdown assistance:

- Breakdown assistance telephone number: 058 275 27 27
- Insurance/contract number: 6010 6169 937
- Contract name: Katamesh

The Renter must give the breakdown assistance their mobile phone number, the most precise possible location of the vehicle and a short description of the accident and of the condition of the vehicle. The contract number and the contract name must be given to identify the contract. The Renter must follow the instructions of the breakdown assistance. After providing the necessary information, the Renter may end the call and must then wait for assistance at a safe place. The Renter must remain reachable by telephone until the matter has been resolved or help has arrived.

9.3.5 Further measures and documentation: The Renter must keep all relevant information, photos, accident reports, police reference numbers and receipts and make them available to the Lessor without delay on request. Necessary immediate measures to avert danger, to secure the vehicle or to prevent significant consequential damage remain reserved at all times. The Renter must inform the Lessor of any such measures as quickly as possible.

9.4 Instructing towing services, breakdown services and garages:

Without the Lessor's prior express approval by telephone or in writing, the Renter may, as a rule, not instruct a towing service, breakdown service or garage in the Lessor's name or at the Lessor's expense.

This restriction does not apply if immediate measures are necessary to avert danger to persons, to secure the vehicle or to prevent significant consequential damage and the Lessor cannot be reached in time despite reasonable attempts to make contact. In such cases, the Renter may arrange the necessary and proportionate measures. The Renter must inform the Lessor as quickly as possible and document the measures taken and the costs incurred.

Insofar as the specific situation allows, the Renter must wait for the Lessor's consent before giving any such instruction. An instruction given without prior consent does not in itself entitle the Renter to have the costs automatically borne by the Lessor.

9.5 Cost consequences of instructing third parties in breach of contract:

If, contrary to the above provisions, the Renter arranges services from a towing service, breakdown service or garage without the Lessor's required approval, the Renter must bear the costs caused as a result, insofar as these are based on a breach of contract attributable to the Renter and can be imposed on the Renter under the statutory provisions.

The costs may include in particular towing, call-out, diagnosis, repair and ancillary costs, provided that they were actually incurred, are reasonable and are proven. Whether the Lessor bears costs is governed by the rental agreement, the applicable insurance conditions and the statutory provisions. Charging the same costs or the same damage twice under different items is excluded.

9.6 Accident, theft and other reporting of damage:

In the event of an accident, the Renter must secure the accident site, give assistance to injured persons where necessary and alert the ambulance service on the emergency number 144. The police must be notified if this is required by law or necessary in the circumstances. For accidents between 00:00 and 07:00, clause 9.3 also applies.

Where possible and safe, the Renter must secure the details of the persons involved and of witnesses, licence plates, insurance information, photos of the damage and of the accident site, and an accident report.

Without the relevant authority, the Renter may not make any acknowledgement of liability or enter into any binding settlement of claims for damages.

Every accident, damage, theft, loss or other incident relevant to insurance must be reported to the Lessor without delay, if possible within 24 hours of becoming aware of it. If this is not possible or not reasonable because of injuries, official measures or other important reasons, the report must be made without delay once the obstacle has ceased.

The Renter must cooperate fully and truthfully in the investigation and settlement of the damage and provide the documents that are necessary and lawfully requested.

9.7 Mitigation of damage, cooperation and safety:

The Renter must take reasonable measures to limit damage and costs and cooperate appropriately in the investigation and handling of a breakdown or claim.

The Renter must keep all available invoices, receipts, photos, accident reports and other relevant documents and make them available to the Lessor without delay on request.

No provision of this clause obliges the Renter to endanger themselves or third parties, to delay necessary first-aid measures or to breach statutory obligations. Statutory reporting obligations, police instructions and mandatory statutory provisions remain reserved.

10 Return, Handover Report and Replacement Vehicle

10.1 The vehicle must be returned at the agreed place and time with all keys, documents and accessories.

10.2 On handover and on return, the condition of the vehicle, existing damage, mileage, fuel or charge level and accessories should be recorded in a report. Photos may serve as additional evidence.

10.3 The Renter must report recognisable damage or discrepancies without delay when taking over the vehicle. A failure to report does not in itself automatically make the Renter liable for damage that cannot be proven to have been caused by the Renter. The statutory rules on the burden of proof remain reserved.

10.4 New damage found on return must be documented and communicated to the Renter promptly. The Renter's responsibility is governed by the law and the contract.

10.5 A late return must be notified to the Lessor without delay. An extension is binding only with express consent. In the event of an unjustified late return, the contractual penalty under clause 11 and any further damages owed by law may be claimed. Double compensation for the same damage is excluded.

10.6 In the event of a breakdown or technical defect not caused by the Renter, the Lessor endeavours to provide an equivalent replacement vehicle, subject to availability. A general entitlement to a replacement vehicle exists only insofar as it has been expressly agreed or is owed by law. The Renter's mandatory statutory rights remain reserved.

10.7 The return is deemed to have taken place when the vehicle and the items provided have actually been handed over to the Lessor or to a person authorised by the Lessor, or when the Lessor has otherwise confirmed the return.

11 Contractual Penalties and Flat-Rate Charges

11.1 For the culpable breaches of contract or cases of damage listed below, the following contractual penalties or minimum flat rates may be agreed, provided that the respective statutory and contractual requirements are met:

Breach of contract / case of damage	Contractual penalty / flat rate
Unjustified late return, per calendar day or part thereof	CHF 100.00
Material, culpable false statement of the residential or postal address, insofar as it is relevant to the conclusion of the contract or to the enforcement of claims	CHF 500.00
Leaving the vehicle to a driver who is not authorised	CHF 500.00

Smoking or vaping in the vehicle	CHF 250.00
Intentional or culpable tampering with, removal or unauthorised deactivation of the GPS or tracking system	CHF 800.00
Culpable, material breach of the duty to report an accident	CHF 500.00
Culpably caused tyre or rim damage (e.g. contact with a kerb, cut, tear or improper handling)	At least CHF 100.00 (plus actual replacement costs & loss of rental income under clause 7.6)

11.2 The contractual penalties apply only if the respective breach of contract and the necessary statutory requirements are present. They do not replace the obligation to end a breach of contract or to return the vehicle.

11.3 Excessively high contractual penalties may be reduced by the competent court under Art. 163 para. 3 CO.

11.4 Further proven damages remain reserved within the scope of the applicable law, in particular Art. 161 para. 2 CO. Payments and compensation are credited in such a way that the same damage is not compensated twice.

12 Deposit, Payment Default and Fees

12.1 The amount, method of payment and timing of the deposit, and the accepted means of payment, are set before the contract is concluded in the individual rental agreement or in the booking terms.

12.2 The deposit serves to secure legitimate claims arising from the rental relationship. Amounts that are demonstrably owed and due may be set off to the extent permitted by law. The Lessor informs the Renter of any such set-off in a comprehensible manner.

12.3 If, on return, specific claims or enquiries from authorities (e.g. announced fines, speed camera photos or requests for information about the vehicle's keeper) are apparent that cannot yet be finally quantified, a part of the deposit corresponding to the expected claim may be withheld until the matter has been fully clarified and settled. An undisputed balance is repaid on time.

12.4 Period for repaying the deposit:

The deposit is repaid no earlier than 5 and no later than 10 working days after the vehicle has been properly returned. This period serves in particular to check and settle claims that arrive afterwards, such as traffic and regulatory fines (e.g. speeding or red-light offences / speed camera photos), tolls or hidden damage that were not yet known when the vehicle was returned. The actual time it takes for the amount to be credited to the Renter's account or credit card may vary depending on the payment service provider.

12.5 In the event of payment default, the Lessor may take the reminder, debt collection and debt enforcement steps permitted by law. The following fees may be charged only insofar as they were validly agreed before the contract was concluded and are permitted by law and reasonable in the specific case:

Service	Fee
Processing a traffic fine or an enquiry from an authority	CHF 20.00
Reminder in the event of payment default	CHF 20.00
Internal administrative work in connection with initiating debt enforcement proceedings	CHF 80.00
Organising a necessary recovery of the vehicle	At least CHF 400.00
Storage of the vehicle	CHF 50.00 per day

12.6 Fees under clause 12.5 are charged only to the extent permitted. Where actual expenses or third-party costs are claimed, they must be substantiated in a verifiable manner on request. Official fees and external costs are distinguished from internal processing fees. Additional external costs may be charged only if they were actually incurred, are legally attributable and are recoverable.

12.7 Charging the same expense or damage more than once under different fee or damages items is excluded.

13 Reclaiming the Vehicle and Legal Action

13.1 After the agreed rental period has expired or the rental agreement has been validly terminated, the Renter must return the vehicle on time.

13.2 If the vehicle is not returned, the Lessor may demand its return and, where necessary, set a reasonable deadline. In urgent cases or where the vehicle is in specific danger, legal measures that are permissible immediately remain reserved.

13.3 Reasonable and proven costs of recovering the vehicle may be charged to the Renter insofar as the Renter culpably caused the recovery and there is a statutory or validly agreed contractual basis.

13.4 In the event of significant payment default, unauthorised passing on of the vehicle, tampering with security devices or other material breaches of contract, the Lessor may take suitable, proportionate measures permitted by law to secure and reclaim the vehicle.

13.5 If the vehicle is not returned, or in the event of other significant breaches of contract, the Lessor may assert its civil-law claims and, where appropriate, inform the competent authorities. A late return or other breach of contract does not automatically constitute a criminal offence.

14 GPS Tracking, Vehicle Location and Remote Immobilisation

14.1 The vehicle may be equipped with a GPS tracking or fleet management system. Location and vehicle data may be processed for lawful and proportionate purposes, in particular for theft prevention, fleet management, securing the vehicle and the legitimate reclaiming of the vehicle.

14.2 The Lessor informs the Renter in an accessible privacy policy of the essential aspects of the data processing, in particular the purposes, the categories of data concerned, recipients, the retention period or the criteria for determining it, and the data protection rights available.

14.3 Location data is retained only for as long, and made accessible only to those persons, as is necessary and legally permissible for the stated purposes. It is disclosed only on a permissible legal basis.

14.4 The Renter may not tamper with, remove, damage or deactivate without authorisation any tracking or security devices. Malfunctions must be reported to the Lessor without delay.

14.5 A technical remote immobilisation may be carried out only if it is permitted by law, necessary and proportionate in the specific case. In particular, it may not take place while the vehicle is being driven or in a situation in which it could endanger the driver, occupants or other road users. The vehicle must be reclaimed by lawful means.

14.6 Liability in connection with tracking, remote immobilisation or reclaiming the vehicle is governed by the applicable law. Mandatory liability provisions remain reserved.

15 Identity, Information and Duties to Cooperate

15.1 The Renter confirms that their information and the identity documents, driving licences, permits and other documents they have presented are, to the best of their knowledge, complete, truthful and valid.

15.2 This applies in particular to name, identity, date of birth, residential and postal address, contact details, payment details and the entitlements to drive and permits required for the use of the vehicle.

15.3 Material changes to the Renter's contact or postal address, and the loss of a required entitlement to drive, must be notified to the Lessor without delay.

15.4 Where there is objective cause, the Lessor may request current proof insofar as this is necessary for concluding the contract, safely handing over the vehicle or performing the rental relationship and is permissible under data protection law.

15.5 Intentionally false or misleading information and forged or invalid documents may constitute a material breach of contract. Depending on the facts, they may meet the elements of criminal offences; the assessment is a matter for the competent authorities and courts.

15.6 Under the statutory provisions, the Renter is liable for proven, legally attributable damage that they culpably cause through false information or the use of incorrect documents. Recoverable loss of rental income, costs of returning the vehicle, and necessary and legally recoverable debt collection and legal costs may be claimed insofar as the statutory requirements are met. Double compensation for the same damage is excluded.

16 Professional Passenger Transport and Use of Platforms

16.1 Use for professional passenger transport, taxi rides or platform rides is permitted only if it has been expressly agreed in the individual rental agreement.

16.2 Throughout the rental period, the Renter is responsible for complying with all statutory, regulatory and contractual requirements necessary for the agreed use. This includes in particular the required entitlements to drive (e.g. BPT / Code 121), permits and the applicable regulations for professional passenger transport.

16.3 The Renter must ensure that the vehicle is registered, equipped and insured accordingly for the agreed purpose. The Lessor does not guarantee admission to a platform or any particular turnover.

16.4 The Renter shall inform the Lessor without delay of the loss, restriction or withdrawal of any authorisation required for the agreed use.

17 Data Protection and Notices

17.1 The Lessor processes personal data to handle booking requests, to conclude and perform the rental agreement, to process payments, to fulfil statutory obligations, to handle claims and to safeguard legitimate interests, to the extent permitted by law.

17.2 Further information, in particular on recipients, retention periods, any disclosures abroad and the rights of data subjects, is set out in the Lessor's privacy policy. It must be easily accessible on the website and made available at the time of booking or vehicle pick-up.

17.3 Notices in connection with the rental relationship may be sent to the contact addresses given in the rental agreement, provided that the notice in question is legally permissible in this form.

17.4 The Renter must notify changes to their contact and postal address without delay. Statutory provisions on the receipt of declarations remain reserved.

18 Final Provisions

18.1 Entire agreement: The individual rental agreement, these GTC and expressly incorporated supplementary agreements constitute the agreement between the parties on the rental relationship concerned. In the event of conflict, individual, expressly agreed contractual provisions take precedence over these GTC.

18.2 Amendments: Amendments and supplements to the rental agreement must be made in text form, unless a stricter form is required by law or the parties expressly agree on a stricter form.

18.3 No waiver: The Lessor's temporary failure to exercise a right, or its delayed enforcement of a right, does not constitute a waiver of that right.

18.4 Force majeure: To the extent permitted by law, neither party is liable for failures of performance directly attributable to extraordinary events that are beyond control and could not be avoided despite reasonable care. The affected party informs the other party without delay where possible and takes reasonable measures to limit the effects. Mandatory statutory rights and liability rules remain reserved.

18.5 Severability: Should any provision of these GTC be or become invalid or unenforceable in whole or in part, the remaining provisions remain valid to the extent permitted by law. The applicable statutory provisions apply in place of the invalid provision.

18.6 Governing law: Substantive Swiss law applies, insofar as its application is permitted by law. Mandatory provisions of private international law and mandatory consumer protection provisions remain reserved.

18.7 Place of jurisdiction Zurich: Insofar as an agreement on jurisdiction is permitted by law, Zurich, Switzerland, is agreed as the place of jurisdiction for all disputes arising from or in connection with the rental relationship. Mandatory statutory places of jurisdiction, in particular for consumer contracts, remain reserved. Where a prior agreement on jurisdiction is not permitted by law, the statutory places of jurisdiction apply.

Lessor: Rigitrade AG
Registered office: Tannenstrasse 16, 8424 Embrach, Switzerland
Business address: Schaffhauserstrasse 550, 8052 Zürich

These GTC apply only insofar as they have been validly incorporated into the respective rental agreement. On concluding the contract, the Renter confirms that the GTC were made accessible to them and that they have agreed to them.

October 2026